

Court No. - 32

Case :- WRIT - C No. - 11915 of 2009

Petitioner :- Sushila Upadhyay

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Ratnesh Khare

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Syed Rafat Alam,J.

Hon'ble Krishna Murari,J.

List has been revised despite that, no one is present on behalf of the petitioner though name of Sri Ratnesh Khare is shown in the cause list as counsel for the petitioner. However, Sri Pankaj Dube holding brief of Sri H.P. Dube for the U.P. Power Corporation is present. We have perused the record.

The short grievance of the petitioner is that the respondents may be directed to provide electricity connection in her shop for which application and thereafter, reminders were given. When the matter was taken up as fresh on 5.3.2009 the Division Bench after hearing the parties at length, directed the Sub Divisional Officer of the Division to provide electricity connection to the petitioner, if all the formalities have been fulfilled, within a period of one month or show cause. A counter affidavit has been filed on behalf of the U.P. Power Corporation stating therein that since the petitioner completed all the formalities as provided in U.P. Electricity Supply Code and also deposited the requisite charges for electricity connection on 6.4.2009 therefore the supply of electricity has been ensured to the petitioner's premises on 6.4.2009 and sealing certificate has also been issued on the same date. Learned counsel for the U.P. Power Corporation Ltd., also informs that the grievance of the petitioner has already been redressed by the Power Corporation as the electricity connection has been provided to her shop.

In view of the above, the cause of action in this petition no more

survives. It is accordingly dismissed.

Order Date :- 31.8.2009
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